

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dillon Bezeherntny	Team: Squad #11	CCRB Case #: 202204852	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 07/24/2022 1:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/24/2024	Precinct: 73		
Date/Time CV Reported Sun, 07/24/2022 11:02 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 07/24/2022 11:02 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Christopher Francis	10068	965108	PSA 3
2. PO Krishawni Denton	11162	967479	PSA 3
3. PO Pascual Melo	06249	966218	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jorge Ramos	03540	964719	PSA 3
2. PO Sergiomonty Ang	17175	967753	PSA 3
3. PO Andrea Nievessantiago	07534	966739	PSA 3
4. SGT Alex Ramos	01480	947941	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A. PO Pascual Melo	Force: Police Officer Pascual Melo used physical force against § 87(2)(b)	§ 87(2)(b)
B. PO Pascual Melo	Discourtesy: Police Officer Pascual Melo spoke discourteously to § 87(2)(b)	§ 87(2)(b)
C. PO Christopher Francis	Abuse: Police Officer Christopher Francis damaged § 87(2)(b)'s property.	§ 87(2)(b)
D. PO Christopher Francis	Abuse: Police Officer Christopher Francis searched the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
E. PO Krishawni Denton	Abuse: Police Officer Krishawni Denton searched the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)

Case Summary

On July 24, 2022, § 87(2)(b) filed this complaint online with CCRB.

At approximately 1:15 a.m. on July 24, 2022, § 87(2)(b) was approached by numerous officers as he stood beside his vehicle, parked directly beside a fire hydrant near § 87(2)(b) in Brooklyn. Police Officer Pascual Melo allegedly pushed § 87(2)(b) on approach, and allegedly telling him, “What the fuck are you doing on the street? Get the fuck on the sidewalk” (**Allegation A: Force, § 87(2)(g); Allegation B: Discourtesy, § 87(2)(g)**). Officers observed fireworks and a knife inside § 87(2)(b)'s vehicle, at which time Police Officer Christopher Francis and Police Officer Krishwani Denton entered the front driver-side and front passenger-side of the vehicle respectively to remove the contraband, PO Francis allegedly damaging the front driver-side door handle on the exterior of § 87(2)(b)'s vehicle in the process (**Allegation C: Abuse of Authority, § 87(2)(g); Allegation D: Abuse of Authority, § 87(2)(g); Allegation E: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) received summons § 87(2)(b) § 87(2)(a) 160.50 and summons § 87(2)(b) § 87(2)(a) 160.50.

On August 16, 2022, CCRB received body-worn camera footage from the NYPD Legal Bureau for Police Officer Christopher Francis, Police Officer Krishwani Denton, Police Officer Sergiomonty Ang, Police Officer Andrea Nieves-Santiago, Police Officer Pascual Melo, Police Officer Jorge Ramos, and Sergeant Alex Ramos.

Findings and Recommendations

Allegation (A) Force: Police Officer Pascual Melo used physical force against § 87(2)(b)

PO Melo's BWC (**Board Review 01**) takes place on July 24, 2022, starts at 00:47:55 and ends at 00:59:23. It has audio, is in color, and the timestamps appear to be accurate. At durational timestamp 00:25, PO Ang and PO Melo slowly walk towards § 87(2)(b) who is standing by the rear driver-side door of his vehicle. § 87(2)(b)'s friend has a backpack of some sort on § 87(2)(b)'s trunk and appears to be interacting with it, though PO Melo and PO Ang do not interact with the friend. There is no physical interaction captured between PO Melo and § 87(2)(b).

§ 87(2)(b) (**Board Review 02**) was standing beside his vehicle, which was temporarily parked beside a fire hydrant to avoid double parking, talking with a friend that lives in the area whom § 87(2)(b) declined to identify or provide contact information for. Officers approached § 87(2)(b) asking who owned the car. § 87(2)(b) stated that the officer that approached him first, a Hispanic male, quickly walked up to him and pushed him with two hands on his stomach area. To get some distance between himself and the officer, § 87(2)(b) pushed the Hispanic male officer back in a manner like he himself had been pushed.

As PO Melo (**Board Review 03**) approached a sedan illegally parked next to a fire hydrant, he observed that the front driver-side door of the vehicle was ajar. Given that it was 1 a.m. and there were no other people around, PO Melo deduced that the vehicle had to belong to § 87(2)(b) or the younger man § 87(2)(b) was speaking to. § 87(2)(b) initially told officers that the car was not his. Because PO Melo felt § 87(2)(b) was lying to him about ownership of the vehicle, PO Melo activated his body-worn camera. PO Melo did not remember seeing any officer push or otherwise physically interact with § 87(2)(b) at the beginning of the interaction. PO Melo stated that he did not recall pushing § 87(2)(b) when he first arrived on scene.

PO Ang (**Board Review 04**) corroborated PO Melo's statement.

PO Denton (**Board Review 05**) stated that officers told § 87(2)(b) that he could not park next to a hydrant. PO Ang and PO Melo were the first to reach § 87(2)(b). § 87(2)(b) was in the street such that he was between his vehicle and the curb as officers initially approached. PO Denton stated that officers instructed § 87(2)(b) to get off the street. PO Denton did not recall any officer touching § 87(2)(b) upon officers' initial approach.

§ 87(2)(b) alleged that a Hispanic male officer pushed him upon approach. BWC confirms that PO Melo and PO Ang were the first to approach § 87(2)(b) though PO Ang identifies as Asian, and PO Melo identifies as Hispanic. Furthermore, PO Denton testified to PO Melo being the first officer to interact with § 87(2)(b). PO Melo's BWC captures the incident in its entirety but does not capture any physical interaction whatsoever between him and § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

Allegation (B) Discourtesy: Police Officer Pascual Melo spoke discourteously to § 87(2)(b)

§ 87(2)(b)

At 00:25 of PO Melo's BWC (**Board Review 01**), PO Ang and PO Melo slowly walk towards § 87(2)(b) who is standing by the rear driver-side door of his vehicle. § 87(2)(b)'s friend had a backpack of some sort on § 87(2)(b)'s trunk and appeared to be interacting with it, though PO Melo and PO Ang do not interact with the neighbor. There is no physical interaction captured between PO Melo and § 87(2)(b). At 01:17, § 87(2)(b) tells PO Melo, "Officer, you just cursed at me." No profanity was captured but there does appear to be verbal interaction prior to the termination of the audio buffer at 01:00.

§ 87(2)(b) (**Board Review 02**) stated that the officer who approached him first, a Hispanic male, issued the following statements: "What the fuck are you doing on the street," and "Get the fuck on the sidewalk."

PO Melo (**Board Review 03**) could not recall issuing any additional statements to § 87(2)(b) when initially exiting the marked vehicle and approaching him. PO Melo did not remember saying, or hearing any other officer saying, a statement to the effect of, "What the fuck are you doing on the street?" or "Get the fuck on the sidewalk." PO Melo stated that he did order § 87(2)(b) and the younger man to get off the street. § 87(2)(b) got "nasty" and "rowdy" with PO Melo, screaming at him. PO Melo could not recall any specific statements § 87(2)(b) made at the time. PO Melo stated that he was the first officer to interact with § 87(2)(b)

PO Francis (**Board Review 06**) was unaware if members of PO Melo's car had verbal interaction with § 87(2)(b) prior to PO Francis' arrival in § 87(2)(b)'s general vicinity. PO Francis did not recall any officer physically interacting with § 87(2)(b) upon officers' initial approach. PO Francis did not know if any officer used profanity with § 87(2)(b) upon initial approach. PO Francis did not hear any officer say, "What the fuck are you doing on the street?" or "Get the fuck on the sidewalk, get the fuck on the sidewalk."

PO Ang (**Board Review 04**) did not recall any verbal interaction between officers from "the first unit" prior to the arrival of officers from "the second unit."

PO Denton (**Board Review 05**) stated that PO Melo was the first “contact officer.” PO Denton did not recall PO Melo using any profanity with § 87(2)(b) regarding the instruction to get off the street and stay on the sidewalk.

§ 87(2)(b), § 87(2)(g)

While § 87(2)(b) is heard telling PO Melo, “Officer, you just cursed at me” at durational timestamp 01:17 of PO Melo’s BWC, the audio does not capture any profanity from PO Melo.

§ 87(2)(b), § 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Christopher Francis damaged § 87(2)(b) s property.

PO Francis’ BWC (**Board Review 07**) at durational timestamp 00:33, PO Francis walks to the driver-side door of § 87(2)(b) s car and peers in through the closed window. All the windows of § 87(2)(b) s vehicle appear to be closed. PO Francis walks around the hood of the vehicle where another officer is peering in through the rear passenger-side window. PO Francis peers through the front passenger-side window, then the rear passenger-side window. The driver-side door handle has visible damage consistent with what § 87(2)(b) s pictures and narrative alleged, though no officer has interacted with the door to this point. At 02:10, PO Francis opens the driver-side door of § 87(2)(b) s vehicle using the external handle. § 87(2)(g)

§ 87(2)(b) (**Board Review 02**) stated PO Francis grabbed the handle of his driver-side door, which was closed, and yanked it open, damaging the handle. § 87(2)(b) stated that the “silver part” was “separated from the handle” such that he must push the pieces of the handle together and hold it tightly to open the door. § 87(2)(b) stated that there was no damage to the door handle prior to PO Francis interacting with it.

PO Francis (**Board Review 06**) opened § 87(2)(b) s driver-side door to retrieve the knife he had observed. PO Francis did not recall observing any damage to § 87(2)(b) s door handle prior to his opening the driver-side door. PO Francis stated that he did not cause any damage to the car door when he opened it.

§ 87(2)(b), § 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Christopher Francis searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Police Officer Krishawni Denton searched the vehicle in which § 87(2)(b) was an occupant.

At durational timestamp 01:25, PO Francis' BWC (**Board Review 07**) captures § 87(2)(b) and PO Melo talking to each other. PO Francis approaches § 87(2)(b) and asks if § 87(2)(b) would talk to him now. § 87(2)(b) tells PO Francis, "I'm not talking to you, officer. Don't even talk to me." PO Francis responds, "Okay bet. Bet. Say that. We'll write a summons then." At 02:05, PO Melo and § 87(2)(b) are yelling at each other. As PO Francis walks towards the driver-side door of § 87(2)(b)'s vehicle, an officer tells PO Francis, "There's fireworks in there." At 02:10, PO Francis opens the driver-side door of § 87(2)(b)'s vehicle using the external handle.

PO Denton's BWC (**Board Review 09**) takes place on July 24, 2022, starts at 00:47:54 and ends at 00:59:42. It has audio, is in color, and the timestamps appear to be accurate. At durational timestamp 02:06, PO Denton tells PO Francis, "There's fireworks in there." At 02:18, PO Denton opens § 87(2)(b)'s front passenger-side door, leans into the vehicle, and removes the fireworks from where they were positioned on the floor of the front passenger side. PO Denton does not do anything further in § 87(2)(b)'s vehicle once the fireworks are removed.

§ 87(2)(b) (**Board Review 02**) stated that PO Francis yanked the front driver-side door of his vehicle, which was fully closed, open, then leaned into the car and removed a half-inch knife from the vehicle. PO Francis did not ask for permission to enter the vehicle prior to doing so. PO Francis searched the front of the vehicle for two to three minutes. § 87(2)(b) did not see any other officer go into his vehicle aside from PO Francis.

PO Francis (**Board Review 06**) observed a knife in § 87(2)(b)'s car. Though it was dark that night, § 87(2)(b)'s windows were not tinted, and officers were using their flashlights to observe the interior of the car from its exterior. PO Francis could not recall where specifically he observed the knife but stated the knife was in plain view and he observed it from the exterior of § 87(2)(b)'s vehicle. PO Francis stated that he did not search § 87(2)(b)'s car at all and only went into the car to retrieve the knife he had observed in plain view. PO Francis did not recall if he observed any other officer enter § 87(2)(b)'s vehicle. PO Francis stated that the fireworks were also removed but he could not recall which officer removed them.

PO Denton (**Board Review 05**) stated that PO Francis noticed a knife in plain view in § 87(2)(b)'s car. Around that same time, PO Denton observed fireworks in plain view in § 87(2)(b)'s car. PO Denton stated that it was very dark at that time, but officers were using their flashlights. The fireworks were on the floor of the front passenger-side of § 87(2)(b)'s vehicle. PO Denton entered § 87(2)(b)'s vehicle by opening the front passenger-side door using the handle on the exterior of the car, removing the fireworks. PO Denton did not enter § 87(2)(b)'s car for any reason other than to remove the fireworks. PO Denton did not conduct a search of the front passenger-side area of § 87(2)(b)'s car while removing the fireworks.

The Supreme Court of New York State ruled that an officer who makes an observation of contraband in plain view while outside of a vehicle may search that vehicle without the owners' consent *People v. Major*, 267 A.D.2d 251 (**Board Review 10**).

It is clear from PO Francis' and PO Denton's BWC videos that PO Francis entered the front driver-side door and removed a knife and that PO Denton observed fireworks in plain view, entering the front passenger-side door to remove them. BWC does not capture either PO Francis or PO Denton conducting a search of the car outside of reaching for the contraband they observed in plain view. Both PO Francis and PO Denton testified to the fact they each went into § 87(2)(b)'s vehicle,

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in four allegations (**Board Review 11**):
 - § 87(2)(b)
- Police Officer Pascual Melo has been a member of service for four years and has been a subject in six complaints and twenty-eight allegations, none of which have been substantiated.
- Police Officer Christopher Francis has been a member of service for four years and has been a subject in fifteen complaints and forty-eight allegations, none of which have been substantiated.
- Police Officer Krishwani Denton has been a member of service for three years and has been a subject in three cases and six allegations, none of which have been substantiated.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 5, 2022, the New York City Office of the Comptroller does not have any records for notice of claim filed by § 87(2)(b) on July 24, 2022 (**Board Review 12**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator:	<u>Dillon Bezehertny</u>	<u>Investigator Bezehertny</u>	<u>10/13/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>10/13/22</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date